

Rabin Mukherjee And Ors. vs State Of West Bengal And Ors. on 5 March, 1985

Equivalent citations: AIR1985CAL222, 89CWN573, AIR 1985 CALCUTTA 222

ORDER

Bhagabati Prasad Banerjee, J.

1. This writ application was moved by the petitioners for protection of their own rights and also in public interest being aggrieved by the nuisance and noise pollution which are being created in the impunity by the transport operators by indiscriminate installation and use of electric and artificially generated air horns which cause unduly rash, shrill, loud and alarming noise. In the writ petition, the petitioners prayed for a writ in the nature of Mandamus commanding the Respondents to enforce the provisions of Rule 114 of the Bengal Motor Vehicles Rules, 1940 and to enforce the restrictions against the use of such electric and other loud and shrill horns including air horns by operators of the transport vehicles. The case of the petitioners is that State of West Bengal is a thickly populated area and the density of population is one of the highest in India, It was further alleged that the prevailing noise level in this State particularly in the Calcutta Metropolitan Area is far in excess of the permissible limit and it is no longer in dispute that such excessive noise level poses positive danger to the residents of the respective locality. It also poses serious threat to the health of the residents apart from causing serious inconvenience to the weak, infirm and indisposed people. It was also alleged that even normal people are increasingly finding it difficult to enjoy their so essential in their lives or to carry on their works whatever be their nature. The petitioners' further case is that one most important factor contributing to the noise nuisance, particularly in the case of those who have their residences in the Calcutta Metropolitan Area or any other urban areas, is the blowing of loud and shrill horns by operators of transport vehicles. The said loud and shrill horn either electric horn or air horn mechanically generated and stored in an air tank in most of the transport vehicles. It was further alleged by the petitioners that sudden blowing of such horns by transport vehicles produces a rude shock in the human system and is acknowledged to have serious effects on various aspects of human life including blood pressure, mental and nervous system. It also does not permit effective concentration to be provided because of sudden disruption caused by such loud and shrill horns. The transport operators particularly the goods transport vehicles operate about 18 hours a day with such type of horns.

2. Mr. Saktinath Mukherjee, learned Advocate appearing on behalf of the petitioners in support of the contentions of the petitioners, referred to the provisions of Rule 114 of the Bengal Motor Vehicles Rules, 1940. The said Rule is as follows : --

"114. Horns.-- (a) Every motor vehicle shall be fitted with a horn or other approved device available for immediate use by the driver of the vehicle and capable of giving audible and sufficient warning of the approach or position of the vehicle.

(b) No motor vehicle shall be fitted with any multitoned horn giving a succession of different notes or with any other sound producing device giving any unduly harsh, shrill, loud or alarming noise.

(c) Nothing contained in Sub-rule (b) shall prevent the use on vehicles, used as ambulances or for fire fighting or salvage purposes or on vehicle used by police officers in the course of their duties, or on other similar vehicles, of such sound signals as may be approved by the Registering Authority.

(d) Every transport vehicle shall be fitted with a bulb horn."

On the basis of the said Rule it was contended by Mr. Mukherjee that in spite of the provision that every transport vehicle shall be fitted with a bulb horn, the transport operators in gross violation of such Rules are using air horn and electric horn which produces a shrill and loud noise and which is not also necessary* for running or operating the vehicles.

3. It is a matter of common knowledge that almost all the transport vehicles use air horn and electric horn instead of using bulb horn as provided in Rule 114(d) of the Bengal Motor Vehicles Rules, 1940 and such unnecessary and excessive use of such horn creates annoyance to the people. It was stated in paragraph 15 of the petition that recently a research was conducted jointly by Basu Bijnan Mandir and the Presidency College, Calcutta about noise pollution in the city of Calcutta and the suburbs. On such analysis it is found that the atmosphere and the environment is very much polluted from indiscriminating noise emitted from different quarters and on research it was found that persons who are staying near the Air Port, are becoming victim of various ailments. Such persons even become victim of mental disease. On such research it was also found that workers in various factories even become deaf and hard of hearing. It was further found on such research that as a result of this excessive noise pollution, people suffer from loss of appetite, depression, mental restlessness and insomnia. People also suffer from complain of excessive blood pressure and heart trouble. It is not necessary to go into the question about direct effect of such noise pollution because of indiscriminate and illegal use of such electric and air horn as it is an admitted position that the same is injurious to health and amongst different causes of environmental pollution, sound pollution is one, which is a matter of grave concern.

4. Rule 114(d) of the Bengal Motor Vehicles Rules, 1940 provided that every transport vehicle should be fitted with a bulb horn. The "transport vehicle" has been defined in Section 2(33) of the Motor Vehicle Act, 1939 (hereinafter referred to as the said Act) which provides that transport vehicle means a public service vehicle or the goods vehicle. "Public service vehicle" has been defined in Section 2(25) of the said Act, which provides that public service means any motor vehicle used or adopted to be used for carriage of passengers for hire or reward and includes a motor cab, contract carriage and stage carriage. "Goods vehicles" have been defined in Section 2(8) of the said Act which

provides that goods vehicles means any motor vehicle constructed or adopted for use of carriage of goods or any other motor vehicle not so constructed or adopted when used for carriage of goods solely or in addition to passengers. So within the scope and ambit of "transport vehicles" the stage carriages, contract carriages including mini buses, lorries and other transport vehicles comes in. It is a mandatory provision as provided in Rule 114(d) of the Bengal Motor Vehicles Rules, 1940 that each transport vehicle namely stage carriages which include private buses, and State buses, contract carriages, mini buses, lorries etc. cannot be fitted with any other form of horn excepting a bulb horn. But the said mandatory provision of the said Rule is now observed only in breaches and no transport vehicle owner follows such Rule.

5. So in view of the mandatory provision of Rule 114(d) of the said Rules, the transport vehicles are using electric and air horn in a reckless manner and that surprisingly no steps had been taken by the authorities concerned for violation of the said mandatory provision. Section 112 of the Motor Vehicles Act provides that whoever contravenes any of the provisions of the said Act or any Rule made thereunder, shall, if no other penalty is provided for the offence, be punishable with fine which may extend to Rs. 100/- and if having been previously convicted of any offence under the said Act, is again convicted of an offence under this Act, with fine which may extend to Rs. 300/-.

6. Mr. Mukul-Prokash Banerjee, learned Advocate appearing for the respondent State Authorities, could not dispute the position that the provision of Rule 114(d) of the said Rule is mandatory in nature and that the transport vehicles cannot use any other form of horn except the bulb horn.

7. Considering the facts and circumstances of the case and considering the mandatory provision of Rule 114(d) of the said Rules and considering the fact that in a congested State like the State of West Bengal, sudden blowing of such horn by transport vehicles produces rude shock in the human system and is acknowledged to have serious effect on various aspects of human life including blood pressure, mental and nervous system it is the duty of the respondents to enforce the provisions of Rule 114(d) of the said Rules. It is also a matter of common knowledge that such transport vehicles even for overtaking another vehicle on the road small or big continuously blow such electric and/or air horn which produces a shrill and loud noise and which creates annoyance to everyone who resides by the side of the road and to all pedestrians including the persons travelling in the vehicles. The indiscriminate use of such horn is amounting to noise pollution in the city of Calcutta and the congested areas of the State of West Bengal and that the same have adverse effect on the public health of the people which creates many a complication including mental restlessness, blood pressure and heart trouble and that it is necessary in the interest of the public at large in the State of West Bengal to stop such noise pollution arising out of unnecessary use of such electric and air horn deliberately. The respondents are under a statutory obligation and duty under Section 112 of the Motor Vehicles Act to punish the person who contravenes the provision of Rule 114(d) of the said Rules. But unfortunately, no positive step had yet been taken in the matter. It is crystal clear that in spite of such statutory provision, such transport vehicles are allowed to use such type of prohibited horn and no action is taken against the person who has been contravening the provisions of the said Rules. The passenger transport cannot operate such types of prohibited horn excepting that they can only use bulb horn as provided within Section 114(d) of the Motor Vehicles Rules. The use of such electric and air horn has increased to an alarming extent that it cannot be checked overnight by

starting prosecutions in usual manner under Section 112 of the said Act. Under the circumstances aforesaid, I allow the application and direct the respondents to enforce strictly the provisions of Rule 114(d) of the Bengal Motor Vehicles Rules, 1940 and to enforce restrictions against the use of such electric and other loud and shrill horn including air horn by operators of the vehicles and considering the problem to control such large scale violation and considering the fact that almost all the transport vehicles are fitted with such prohibited horns, I direct the State Government to issue notice and/or notification immediately notifying to all the transport vehicles operators about the restrictions provided in Rule 114(d) of the said Rules and directing them to remove the electric, air and other loud and shrill horn forthwith and to use only bulb horn in the State of West Bengal giving the operators 15 days time to change the electric and air horn and to fit vehicles with bulb horn with the warning that failure to remove such prohibited horns from their vehicles, penal action should be taken against them according to law and further it should be notified that no such transport vehicles should be given certificate of fitness under Section 38 of the Motor Vehicles Act, if fitted with such horns which are prohibited under Rule 114(d) of the Rules. I also direct the respondents to proceed against the vehicle operators by taking penal action if they fail to remove such types of prohibited horns after the expiry of the period of 15 days which shall be provided for change of such horn by notification or by notice to be issued by the State Government in this behalf giving wide publicity through press and the mass media. Such operators should also be warned that failure to change such types of prohibited horn, the said operators shall be liable for prosecution in accordance with law.

8. The State Government should also take steps for notifying such restriction regarding the use of such types of horn in respect of vehicles which enter into the State of West Bengal from other States so that they may be aware of such restriction in the matter of use of such prohibited horn in the State of West Bengal.

9. It is also desirable in the larger public interest that the respondents and the State Government and the authorities should take suitable measures to implement the provision of Rule 114(d) of the Motor Vehicle Rules, 1940 and no certificate of fitness should be granted under Section 38 of the said Act, in case of non-compliance of the provisions of Rule 114(d) of the said Rules so that this type of noise pollution is eradicated at an early date from the State of West Bengal. Before I part with the matter, I must place it on record by appreciation for the petitioners for their endeavour to stop such noise pollution in the larger interest of people in the State of West Bengal in the matter.

10. There will be no order as to costs.